

Chief Justice's Court

Case :- WRIT - C No. - 14592 of 2017

Petitioner :- Kaushal Kishor

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mohan Lal

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Heard Mr Mohan Lal, learned counsel for the petitioner and Mr Ankit Saran, holding for Mr Krishna Agrawal, learned counsel for respondent no.3.

The petitioner, in the instant writ petition, seeks a direction to the third respondent to grant him power connection for Atta Chakki.

Counsel for respondent no.3-Executive Engineer, submits that if the petitioner deposits the security amount of Rs.1,02,510/- as estimated by them, they would have no objection to grant him a power connection, as prayed. Counsel for the petitioner raises a dispute about the amount of security demanded by them.

Such a dispute cannot be entertained in writ jurisdiction under Article 226 of the Constitution of India. If the petitioner desires to raise a dispute regarding the amount of security, it is open for him to approach the Consumer Grievance Redressal Forum and Ombudsman under Section 7.10 of the Electricity Supply Code-2005. Keeping this remedy open to the petitioner, we dispose of this writ petition.

While parting, we also observe that if the petitioner deposits Rs.1,02,510/-, as aforementioned, by way of security, the concerned authority shall process his application for granting him a power connection, as prayed.

Order Date :- 10.4.2017

RKK/-

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)